

Re: [REDACTED] Public Information Act request to Colorado County dated March 10, 2026 regarding communications

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Date: March 25, 2026 20:04 UTC

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March 25, 2026

VIA E-FILE

Office of the Attorney General of Texas Open Records Division P.O. Box 12548 Austin, Texas
78711-2548

RE: Requestor's Comments in Response to Colorado County's Request for a Decision Regarding TPIA Request of March 10, 2026 (Communications Among County Officials)

Dear General Paxton:

This brief is submitted by requestor Harold "Wayne" [REDACTED] pursuant to **Texas Government Code § 552.305** to provide a comprehensive rebuttal to Colorado County's (the "County") attempt to withhold public records. The County's assertion of six separate exceptions to the Texas Public Information Act (the "Act") is an overbroad effort to conceal all communications among its most senior elected officials regarding a major use-of-force incident, admitted systemic policy failures, and the potential misuse of federal funds.

I. The County's Bad-Faith Reassertion of § 552.108 Constitutes Waiver

The County's assertion of the law enforcement exception (§ 552.108) is a bad-faith maneuver. In a formal communication to this office dated **March 3, 2026**, regarding a related TPIA matter, the County's own outside counsel explicitly and voluntarily withdrew its reliance on § 552.108. For the County to now resurrect this same failed argument is a transparent abuse of the TPIA process. The County has waived its right to assert this exception.

II. The Litigation Exception (§ 552.103) Does Not Protect Core Factual Communications

While the County anticipates litigation, it fundamentally misapplies § 552.103. This exception protects an attorney's mental impressions; it was never intended to hide underlying factual communications between senior non-attorney officials about a significant public incident. The public

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has an absolute right to know the core facts of how its senior elected officials reacted to an event that exposed the County to massive liability.

III. The Strict Limits of Privilege (§ 552.107 and § 552.111)

- **§ 552.107 (Attorney-Client):** This request seeks factual communications *among* senior leadership. A factual statement—such as an email from the Sheriff to the County Judge—does not become privileged simply because the County Attorney was copied. The County's remedy is to redact discrete privileged portions and release the remainder.
- **§ 552.111 (Deliberative Process):** This privilege does not protect purely factual material. The public interest in determining whether senior officials were properly addressing a constitutional crisis at the jail outweighs any claim of privilege.

IV. Legal Consultations Cannot Bypass TOMA Requirements

The County may suggest that communications among a quorum are "legal consultations." However, **Texas Government Code § 551.071** requires a specific procedural process: the court must first convene in an open meeting with 72 hours' notice and publicly announce the authorization for the session. An email chain among a quorum bypasses these mandatory public notice requirements. Attorney-client privilege does not grant a license to conduct an illegal, un-posted meeting via email.

V. Evidence of Intent to Circumvent Transparency

The requestor has worked in the IT field for over 30 years and served as both an employee and contractor for Colorado County. During that time, the requestor was formally questioned by both a sitting County Commissioner and the current County Judge, Ty Prause, in separate meetings regarding the technical methods by which electronic records on personal cell phones could be managed or deleted to "color outside the lines" of public record retention. This history suggests a systemic effort to utilize personal technology to evade TOMA and the TPIA.

VI. Failure to Address Federal Compliance and PREA Violations

On multiple occasions, the requestor provided all senior County officials with formal notice regarding specific **Prison Rape Elimination Act (PREA)** violations and the associated risks to the County's federal funding. Despite the gravity of these issues, the County Judge has excluded this matter from the Commissioners Court agenda for at least 4 consecutive cycles, and all Commissioners remained silent during the "Announcements" portion of the meetings since (regarding these incidents). This pattern of excluding critical, liability-inducing information from the public agenda reinforces the concern that these officials are deliberating these matters via the private, serial communications that are the subject of this records request.

CONCLUSION

Colorado County's shotgun approach of asserting six different exceptions is a transparent attempt to conceal the deliberations of its officials in the wake of a crisis. I respectfully urge the Attorney General to rule that all responsive records must be released immediately.

Sincerely,

/s/

Harold "Wayne"

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